

14. **Heir of settlor not to be excluded from the resulting trust on mere conjecture.** — It must also be observed, that the heir will not be excluded from the resulting trust on bare conjecture (*c*); and there must be positive evidence of a benefit intended to the devisee, and not merely negative evidence that no benefit was intended to the heir; for the trust results to the real representative, not on the ground of intention, but because the ancestor has declared no intention (*d*). Thus, a legacy to the heir, will not prevent a trust from resulting (*e*); but, joined to other circumstances in favour of the devisee, it will not be without its effect (*f*).

15. **Parol evidence.** — As the species of trust we are now considering results by *presumption of law*, it may be rebutted as to instruments *inter vivos* by positive evidence by parol, that the settlor's intention was to confer the surplus interest beneficially (*g*). And it seems that in one case parol evidence was read as to the intention of a *testator*, but the decision of the case turned more particularly upon the intention, as collected from the will itself (*h*).

16. **Of trusts resulting from intention expressed.** — Next, a trust results, by operation of law, where the intention not to benefit the grantee, devisee, or legatee, is *expressed* upon the instrument itself, as if the conveyance, devise, or be-

(*c*) *Halliday v. Hudson*, 3 Ves. 211, *per* Lord Loughborough; and see *Kellett v. Kellett*, 3 Dow, 248; *Amphlett v. Parke*, 2 R. & M. 227; *Phillips v. Phillips*, 1 M. & K. 661; *Salter v. Cavanagh*, 1 Dru. & Walsh, 668.

(*d*) See *Hopkins v. Hopkins*, Cas. t. Talb. 44; *Tregonwell v. Sydenham*, 3 Dow, 211; *Lloyd v. Spillet*, 2 Atk. 151; *Habergham v. Vincent*, 2 Ves. jun. 225.

(*e*) *Randall v. Bookey*, 2 Vern. 425; S. C. Pr. Ch. 162; *Hopkins v. Hopkins*, Cas. t. Talb. 44; *Starkey v. Brooks*, 1 P. W. 390, overruling *North v. Crompton*, 1 Ch. Ca. 196; *Salter v. Cavanagh*, 1 Dru. & Walsh, 668.

(*f*) *Rogers v. Rogers*, 3 P. W. 193; S. C. Sel. Ch. Ca. 81; and see

Docksey v. Docksey, 2 Eq. Ca. Ab. 506; *King v. Denison*, 1 V. & B. 274; *Amphlett v. Parke*, 2 R. & M. 230; *Mallabar v. Mallabar*, Cas. t. Talb. 78.

(*g*) *Cook v. Hutchinson*, 1 Keen, 50, *per* Lord Langdale; *Fowkes v. Pascoe*, 10 L. R. Ch. App. 343; and see *Nicholson v. Mulligan*, 3 I. R. Eq. 308.

(*h*) *Docksey v. Docksey*, 2 Eq. Ca. Ab. 506; and see *North v. Crompton*, 1 Ch. Ca. 196; S. C. cited 2 Vern. 253; *Mallabar v. Mallabar*, Cas. t. Talbot, 78. See also the analogous case of an executor rebutting by parol evidence the presumption arising from the will of a testator's intention to exclude him from the beneficial enjoyment of the residue, *ante*, p. 60.